

24CV03133 Carlos Narbais et al vs Klayton David Marton et al

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-07-31

Motion: CMC; Motion for Leave

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Tentative Ruling: Carlos Narbais et al vs Klayton David Marton et al

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Fri, 07/31/2026 - 10:00

Nature of Proceedings

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Tentative Ruling

On June 4, 2024, plaintiffs Carlos Narbais, through his guardian ad litem, Silvia Narbais, and Silvia Narbais filed their original complaint against defendants Klayton David Martin, and Martin Bros. Landscape Management, Inc., asserting one cause of action for negligence arising out of an automobile accident. On July 23, 2025, defendant Martin filed his answer to the complaint generally denying the allegations thereof and asserting 13 affirmative defenses. On September 8, 2025, plaintiffs filed their amendment to the complaint identifying defendant "Doe 1" as Kelly Jo Martin. On September 19, 2025, the court granted the motion of Progressive Group of Insurance Companies (Progressive) for leave to intervene on behalf of defendant Martin Bros. Landscape Management. On November 6, 2025, defendant Kelly Khoehler, erroneously sued as Kelly Jo Martin, filed her answer to the complaint, generally denying the allegations thereof and asserting two affirmative defenses. On January 16, 2026, the court sustained, in part and with leave to amend, the demurrer of plaintiffs to the answer of Martin. On February 2, 2026, Marin filed a first amended answer.

On March 26, 2026, plaintiffs filed this motion for leave to file an amended complaint for wrongful death and survivorship. The motion is based upon the death of plaintiff Carlos Narbais subsequent to the filing of the original complaint. The motion is

opposed by Progressive and Khoehler. No trial date has yet been set.

"The court may ..., in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars" (Code Civ. Proc., § 473, subd. (a)(1).) "[T]he court's discretion will usually be exercised liberally to permit amendment of the pleadings. [Citations.] The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.)

Plaintiffs have substantially complied with the procedural requirements for this motion. Where there are issues raised concerning the sufficiency of the pleading, the preferred approach is to permit the amendment and address such other issues by appropriate motion. (See Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048.) No trial date has been set and no substantial prejudice has been shown.

The motion for leave to file an amended complaint is granted. Plaintiffs shall file and serve their first amended complaint, in substantially the same form as attached to the motion, on or before August 14, 2026.

Judges

Judge Donna D. Geck

Dept. 4 SB-Anacapa

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